

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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WAIRON NUNEZ,

SUMMONS

Plaintiffs

INDEX NO.

-against-

CITY OF NEW YORK; P.O. REZA HUSAIN,
Shield No. 19125 and JOHN and JANE DOE one through ten,
individually and in their official capacities the
names John and Jane Doe being fictitious, as the
true names are presently unknown),

-----X

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service. If the summons is not personally served on you, or if the summons is served on you outside the State of New York, then your answer or notice of appearance must be served with thirty (30) days. In case of your failure to appear or answer, judgment will be taken against you by default, for the relief demanded in the complaint.

The basis of venue is plaintiff's residence at 2980 West 28th Street, Brooklyn, New York 11224.

Dated: November 10, 2020

Attorney for Plaintiff*Robert Marinelli*

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SERVICE LIST

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P.O. Reza Husain

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
WAIRON NUNEZ,

COMPLAINT

Plaintiffs

INDEX NO.

-against-

CITY OF NEW YORK; P.O. REZA HUSAIN, Shield No.
19125 and JOHN and JANE DOE one through ten,
individually and in their official capacities the
names John and Jane Doe being fictitious, as the
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PLEASE TAKE NOTICE that plaintiff, by his attorney, ROBERT J. MARINELLI, alleges the following, upon information and belief:

Preliminary statement

1. This is an action for damages arising from the imprisonment and prosecution of plaintiff Wairon Nunez ("plaintiff"). Plaintiff was arrested and subjected to various criminal charges on February 1, 2017, without probable cause and in violation of his rights under federal law. On March 27, 2020, all charges against plaintiff were dismissed.

2. On February 1, 2017, POLICE OFFICER REZA HUSAIN ("HUSAIN"), Shield No. 19125; and POLICE OFFICERS JOHN DOE 1 - 10 ("Does"), acting within the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") maliciously prosecuted, and made false allegations to the Kings County District Attorney's Office with respect to plaintiff.

3. Plaintiff seeks compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

JURISDICTION AND VENUE

4. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

5. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

6. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

7. The cause of action arose within Kings County, within the State of New York.

PARTIES

8. Plaintiff is a resident of Kings County

9. At all times hereinafter mentioned, plaintiff is a natural person residing in Brooklyn, N.Y.

10. At all times hereinafter mentioned, defendant HUSAIN was a police officer, employee and agent of the CITY, acting within the scope of his employment and under color of state law. Defendant HUSAIN is sued in his official and individual capacity.

11. At all times hereinafter mentioned, defendants DOES were police officers, employees and agents of the CITY, acting within the scope of their employment and under color of state law, whose names and identities are not currently known to plaintiffs. Defendants DOES are sued in their official and individual capacities.

12. At all times hereinafter mentioned, defendant NYPD was an agency of the CITY.

13. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

STATEMENT OF FACTS

14. In a sworn complaint Husain alleged that on February 1, 2017 at approximately 8:57 p.m. in the vicinity of 61 Midland Avenue, Brooklyn, N.Y. plaintiff had trespassed and resisted arrest when Husain attempted to place him under arrest for that trespass.

15. In fact, plaintiff was not trespassing, he was accompanied at 61 Melrose Street by a friend, Kelvin Gomez ("Gomez") who was a resident of 61 Melrose Street.

16. Despite the fact that they had no probable cause to believe that plaintiff had committed any crimes or offenses, defendant Husain, placed plaintiff under arrest.

17. Plaintiff was handcuffed and placed in a police van. Plaintiff, was ultimately taken to the police precinct. At the precinct the officers falsely informed employees of the Kings County District Attorney's Office that plaintiff had been observed committing a crime.

18. At no point did anyone observe plaintiff doing anything illegal. Plaintiff committed no crime.

19. Ultimately, plaintiff was taken to Brooklyn Central Booking.

20. After about twenty-four hours in custody plaintiff was released. On March 27, 2020, on motion from the Kings County District Attorneys Office, all charges against plaintiff were dismissed.

21. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM

Malicious Prosecution

22. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

23. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

24. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

25. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

SECOND CLAIM

Denial Of Constitutional Right To Fair Trial

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

27. The individual defendants created false evidence against Plaintiff.

28. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

29. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

30. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

Municipal Liability

31. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

32. This is not an isolated incident. The City of New York (the "City"), through policies, practices and customs, directly caused the constitutional violations suffered by plaintiff.

33. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

34. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

35. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior

36. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct. These policies, practices, and customs were the moving force behind plaintiff's injuries.

Prayer for Relief

Wherefore, plaintiff demands judgment against defendants as follows:

1. a) Compensatory damages;
1. b) Punitive damages;
2. c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
3. d) Interest, costs and disbursements;
4. e) Other and further relief as the court deems proper/

A jury trial is hereby demanded.

Robert Marinelli

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New York, N.Y.
November 10, 2020